

**Tentative Rulings and Resolution Review Hearings**  
**September 16, 2024**  
**Department 63 (formerly Department 8)**

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings appear on the calendar outside the court department on the date of the hearing, pursuant to California Rule of Court, Rule 3.1308(b)(1). As a courtesy to counsel, the court also posts tentative rulings no less than 12 hours in advance of the time set for hearing. The rulings are posted on the court's website ([www.shasta.courts.ca.gov](http://www.shasta.courts.ca.gov)) and are available by clicking on the "Tentative Rulings" link. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; [courtcall.com](http://courtcall.com)) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

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**8:30 a.m. – Law & Motion**

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**BELTRAN VS. M.K. & A., LLC**

**Case Number: 23CV-0203159**

**Tentative Ruling on Motion for Leave to File Amendment to Complain:** Plaintiff Sergio Beltran moves for leave to file an Amended Complaint. There is no separate proof of service filed. There is a proof of service contained within the motion. However, this proof of service indicates that Plaintiff served Defendant M. K. & A., LLC with "Specially Prepared Interrogatories to Defendant M. K. & A., LLC, Set Two." There is therefore not currently a valid proof of service on file. Additionally, there was no Opposition received from Defendant. The motion is **DENIED** without prejudice due to a lack of notice. The Court also notes that Plaintiff did not lodge a copy of the proposed Amended Complaint as required per CRC 3.1324(a)(1). Plaintiff also did not lodge a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare the Order. **No appearance is necessary on today's calendar.**

**KENNEDY VS. THOMAS BRENTWOOD, LLC, ET AL.**

**Case Number: 23CV-0202774**

**Tentative Ruling on Motions to Compel Discovery Responses:** Defendants Thomas Brentwood, LLC and Thomas Concord, LLC move to compel responses to Special and Form Interrogatories, Set One, and Requests for Production, Set One, served by email and US Mail on March 21, 2024. Plaintiff Mary Kennedy has not provided any responses or objections to date. The motions are unopposed.

Merits of Motion: Code of Civil Procedure sections 2030.290 and 2031.300 provide a party may move for an order compelling responses to interrogatories and requests for production, respectively, if no timely response has been received. Sanctions are mandatory absent substantial justification. Unlike a motion to compel further responses, when no responses have been provided, no meet and confer is required. Here, the evidence establishes that Defendant properly propounded the discovery and that no responses have been provided. Defendant is entitled to an order compelling complete responses to the interrogatories and the requests for production without objections.

Sanctions: CCP §§ 2030.290(c) and 2031.300(c) provide for the recovery of monetary sanctions against a party who unsuccessfully makes or opposes a motion to compel a response to interrogatories or to requests for production, respectively. The Court finds Defendant's hourly rate of \$210 reasonable and finds the three hours spent per motion reasonable. Defendant requests three additional hours in anticipation of reviewing and